

reconveyance was forged or why Trillion's foreclosure was wrongful. Bedi asserts that "the Forged Deed of Reconveyance purposes to include notarized signature of (Cross-)Plaintiff Sunayana Bedi. Bedi, however, never signed, approved, or authorized her signature to be place on any deed of reconveyance." (CC ¶ 17.) Bedi then alleges on information and belief that "FAT.Homes., LLC, working in concert with Sukhpreet Brar and Brar Group, LLC has actual knowledge that the Forged Deed of Revconveyance was fraudulently procured and that Bedi's Deed of Trust remained unpaid and unsatisfied." (CC ¶ 18.) None of these allegations implicate Trillion or constitute specific facts describing adverse possession by Trillion.

Bedi fails to establish how Trillion's claims to the Property are without right.

The demurrer to the Seventh Cause of Action against Trillion is **sustained** with leave to amend.

Cross-Defendant Trillion shall serve Cross-Plaintiff with notice of the entry of this order. Cross-Plaintiff Bedi shall file and serve an amended pleading 30 days from the date of service of notice of entry of this order.

11. 9:00 AM CASE NUMBER: C24-02448

CASE NAME: FAT.HOMES LLC VS. SUKHPREET BRAR

***HEARING ON MOTION IN RE: STRIKE PORTIONS OF 1ST AMENDED COMPLAINT**

FILED BY: TRILION CAPITAL FUND, LLC

TENTATIVE RULING:

Before the Court is the unopposed Motion to Strike Portions of Defendant / Cross-Complainant Sunayna Bedi's (Bedi) First Amended Cross-Complaint (Cross-Complain, or CC) brought by Cross-Defendant Trillion Capital Fund, LLC (Trillion).

Trillion seeks an order striking from the Prayer, ¶ 6, "Punitive Damages."

Separately, the court has sustained Trillion's Demurrer to the Seventh Cause of Action, for quiet title, which was the only cause of action against Trillion in the Cross-Complaint. (See Line 10 above.) A cause of action for quiet title is not a tort claim and does not award monetary damage. As such there are no claims or allegations against Trillion that would support an award of punitive damages.

Punitive damages are not available in quiet title causes of action, because the action for quiet title is equitable in nature. (*Weeden v. Hoffman* (2021) 70 Cal.App.5th 269, citing *Caira v. Offner* (2005) 126 Cal.App.4th 12, 25, 24 Cal.Rptr.3d 233, citing *Strauss v. Summerhays* (1984) 157 Cal.App.3d 806, 812.)

The motion to strike punitive damages as to Cross-Defendant Trillion is **granted**.

Cross-Defendant Trillion shall serve Cross-Plaintiff with notice of the entry of this order. Cross-Plaintiff Bedi shall file and serve an amended pleading 30 days from the date of service of notice of entry of this order.